

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JAWANZA LEWIS and DEVON ANDREW,
Plaintiffs,

Index No.:

Date Filed:

-against-

Plaintiff designates
KINGS COUNTY
as the place of trialTHE CITY OF NEW YORK, P.O. FABIAN
R. MODESTO [TAX REG. # 950897], and
JOHN DOE AND JANE DOE #1-2 (the names
John and Jane Doe being fictitious, as the true
names are presently unknown),
Defendants.**SUMMONS**
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
August 4, 2021

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, New York 11201
(718) 874-6045

To:

THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, New York 10007P.O. FABIAN R. MODESTO [TAX REG. # 950897]
NYPD-67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JAWANZA LEWIS and DEVON ANDREW,
Plaintiffs,

Index No.

COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. FABIAN
R. MODESTO [TAX REG. # 950897], and
JOHN DOE AND JANE DOE #1-2 (the names
John and Jane Doe being fictitious, as the true
names are presently unknown),
Defendants.
-----X

Plaintiffs, JAWANZA LEWIS and DEVON ANDREW, by their attorney, The Law Offices of UGO UZOH, P.C., complaining of the defendants herein, The City of New York, P.O. Fabian R. Modesto [Tax Reg. # 950897], and John Doe and Jane Doe #1-2 (collectively, “defendants”), respectfully allege as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

THE PARTIES

2. Plaintiffs are and were at all times material herein residents of Brooklyn, County of Kings, City and State of New York.
3. Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.
4. The City of New York Police Department (“NYPD”) is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.

5. Defendant P.O. Fabian R. Modesto [Tax Reg. # 950897] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
6. Defendants John Doe and Jane Doe #1-2 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
7. Defendants Modesto and John Doe and Jane #1-2 are collectively referred to herein as “defendant officers”.
8. At all times material to this Complaint, the defendant officers acted toward plaintiffs under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

9. On or about November 22, 2019, at approximately 8:00 p.m., defendant officers, acting in concert, arrested plaintiffs without cause at or within the vicinity of Mr. Lewis’ home which is located at 476 East 94th Street, Brooklyn, New York, and initially did not charge the plaintiffs with any crime or offense.
10. Prior to the arrest, plaintiffs were attending a funeral with Mr. Lewis driving his car and Mr. Andrew seated in the front passenger seat.
11. Initially, defendant officers partially blocked Mr. Lewis as he was pulling out of his driveway and, thereafter, immediately pulled him over.
12. Earlier on November 21, 2019, defendant officers had accosted Mr. Andrew and their friends, Jahpike Adams, Ataba Jack, and Meli, while they were located across from Mr. Lewis’ home.
13. When Mr. Lewis attempted to intervene at the time to find out what was going on, defendant officers threatened to arrest him and directed him to return back to his home.
14. Upon pulling the plaintiffs over, defendant officers immediately directed them to step out of the vehicle.
15. Upon stepping out of the vehicle as they were directed, defendant officers forcibly grabbed the plaintiffs, pulling and pushing them, and proceeded to

- tightly handcuff the plaintiffs with their hands placed behind their backs causing the plaintiffs to experience pain and numbness in their hands.
16. Defendant officers essentially perp walked the plaintiffs from Mr. Lewis' home to the end of his street where they were eventually placed inside a police vehicle and transported to NYPD-67th Precinct.
 17. Plaintiffs repeatedly inquired as to the reason for their arrest.
 18. Defendant officers ignored the plaintiffs' inquiries.
 19. While at the precinct, defendant officers subjected the plaintiffs to illegal and unlawful search.
 20. Defendant officers also seized and/or impounded Mr. Lewis' vehicle, drove it to the precinct, and, upon information and belief, performed an illegal and warrantless search of the vehicle.
 21. Defendant officers did not recover any contraband from their unlawful search of the plaintiffs and the vehicle.
 22. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiffs saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
 23. Defendant officers interrogated the plaintiffs at the precinct for a lengthy period of time asking them questions about guns and gangs in their neighborhood, and indicated that Mr. Lewis should not have questioned them or tried to intervene in the November 21, 2019 incident.
 24. On November 23, 2019, after detaining the plaintiffs at the precinct for a lengthy period of time, defendant officers issued a traffic ticket to Mr. Lewis falsely charging him with N.Y. Veh. & Tr. L. § 375(12-a)(b)(2) 'Equipment', and also caused a legal process to issue against Mr. Andrew falsely charging him with N.Y. PL 221.05 'Unlawful possession of marihuana'.
 25. Upon release, Mr. Lewis' vehicle was also released to him.

26. Upon entering inside his vehicle, Mr. Lewis observed that the vehicle was thoroughly searched and that several items were moved around, damaged and/or missing.
27. Plaintiffs subsequently appeared in the traffic court and the criminal court to defend the false charges levied against them.
28. On or about May 21, 2020, the false charge(s) levied against Jawanza was summarily dismissed for lack of evidence.
29. Upon information and belief, the false charge(s) levied against Mr. Andrew was eventually dismissed for lack of evidence.
30. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
31. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiffs.
32. As a result of the aforesaid actions by defendants, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

33. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.
34. Defendant officers arrested the plaintiffs without probable cause or reasonable grounds.
35. The conduct of defendant officers, as described herein, amounted to false arrest.

36. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
37. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

38. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. Defendant officers purposely or knowingly used unreasonable force against the plaintiffs.
40. There was no legitimate governmental interest in defendant officers' unnecessary and wanton infliction of pain and suffering upon the plaintiffs.
41. The conduct of defendant officers, as described herein, amounted to excessive use of force.
42. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
43. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE - against defendant officers

44. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. Defendant officers manufactured evidence against the plaintiffs which was relied upon to initiate actions against the plaintiffs.
46. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of due process rights.

47. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

48. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

49. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 48 of this complaint as though fully set forth herein.

50. Defendant officers routinely harass the plaintiffs and would often stop, frisk, search, and detain the plaintiffs whenever they run into them.

51. Defendant officers did not have any reasonable grounds to believe that the plaintiffs were engaged (or had planned to engage) in any criminal activity.

52. Defendant officers by their conduct as described herein subjected plaintiffs to unlawful stop & frisk and unreasonable search & seizure.

53. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

54. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

55. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 54 of this complaint as though fully set forth herein.

56. Defendant officers denied plaintiffs their due process right to be free from continued detention after it was or should have been known that plaintiffs were entitled to release.

57. The conduct of defendant officers, as described herein, amounted to unreasonable detention.
58. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
59. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: FIRST AMENDMENT RETALIATION - against defendant officers

60. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 59 of this complaint as though fully set forth herein.
61. Defendant officers arrested the plaintiffs in retaliation for questioning their conduct on November 21, 2019.
62. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
63. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

64. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 63 of this complaint as though fully set forth herein.
65. Based on the false testimony of defendant officers, the plaintiffs were prosecuted.
66. Plaintiffs were required to, and did, appear in court to defend themselves from the false charges levied against them with malice by defendants.
67. Eventually, the proceeding(s) terminated in plaintiffs' favor.

68. Because of the conduct of the defendants, plaintiffs were maliciously prosecuted for a lengthy period of time.
69. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
70. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
71. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

72. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 71 of this complaint as though fully set forth herein.
73. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
74. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
75. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
76. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against defendant City

77. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 76 of this complaint as though fully set forth herein.
78. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, the proper procedures for obtaining, returning, destroying and/or retaining DNA, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.
79. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in robbery, narcotics, drugs, guns, weapons and/or other illicit activities.
80. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
81. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
82. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in

unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).

83. Defendant City has settled numerous lawsuits against several police officers assigned to the NYPD alleging, among other things, that the police officers falsely arrested the plaintiffs without probable cause, improperly obtained and/or retained their DNA, and improperly seized and/or appropriated to themselves the plaintiffs' properties and/or did not issue or provide to the plaintiffs in those cases with any vouchers specifying the properties seized from them with the constitutionally-required notice printed on the vouchers describing how the plaintiffs could reclaim their properties.
84. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police routinely fabricate evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens.
85. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiffs, incarcerated them, and abused and/or assaulted the plaintiffs.
86. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.
87. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their person and property, to be free from abuse of process, the excessive use of force and the right to due process.

88. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

89. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 88 of this complaint as though fully set forth herein.
90. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving them of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.
91. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
92. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their

constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.

93. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

ELEVENTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) - against defendants

94. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.
95. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
96. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) - against defendants

97. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 96 of this complaint as though fully set forth herein.
98. Based on the false testimony of defendants, the plaintiffs were prosecuted.
99. Plaintiffs were required to, and did, appear in court to defend the false charges levied against them with malice by defendants.
100. Eventually, the proceedings terminated in plaintiffs' favor.
101. Because of the conduct of the defendants, plaintiffs were maliciously prosecuted for a lengthy period of time.
102. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

103. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 102 of this complaint as though fully set forth herein.

104. By reason of and as a consequence of the conduct of defendant officers, plaintiffs sustained injuries with the accompanying pain.
105. The conduct of the defendants, as described herein, amounted to assault and battery.
106. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

107. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 106 of this complaint as though fully set forth herein.
108. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
109. Plaintiffs' emotional distress have damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention, and imprisonment by defendants.
110. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

111. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 110 of this complaint as though fully set forth herein.
112. Upon information and belief, defendant City failed to properly train, supervise or discipline its agents, servants, employees, officers and/or representatives, including the defendant officers, concerning correct practices in conducting investigations, the proper identification procedures, the proper use of force, obligation not to promote or condone perjury and/or

assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.

113. Upon information and belief, defendant City failed to properly screen, hire and/or retain the defendant officers.
114. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.
115. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiffs or to those in a like situation would probably result from such conduct described herein.
116. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
117. Upon information and belief, defendant City's negligence in screening, hiring and retaining defendant officers proximately caused plaintiffs' injuries.

DAMAGES

118. That by reason of the foregoing, plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs respectfully pray judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiffs' reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
August 4, 2021

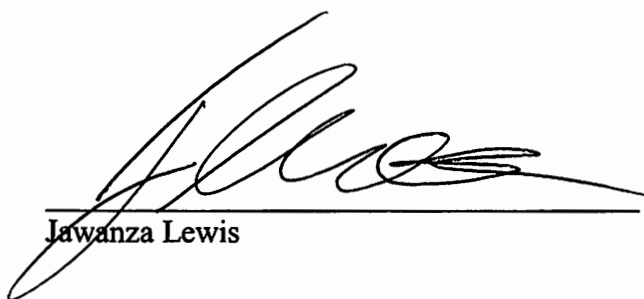
UGO UZOH, P.C.

By: *Ugochukwu Uzoh*
Ugochukwu Uzoh
Attorney for the Plaintiffs
56 Willoughby Street, Third Floor
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Tel. No: (718) 874-6045
Fax No: (718) 576-2685
Email: u.ugochukwu@yahoo.com

STATE OF NEW YORK
COUNTY OF KINGS

SS:

JAWANZA LEWIS being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.



Jawanza Lewis

SWORN TO BEFORE ME THIS 4TH DAY

OF August 2021



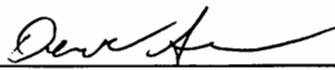
NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

STATE OF NEW YORK
COUNTY OF KINGS

SS:

DEVON ANDREW being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.



Devon Andrew

SWORN TO BEFORE ME THIS 4TH DAY

OF August 2021



NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF ____, 20__

JAWANZA LEWIS and DEVON ANDREW,
Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. FABIAN
R. MODESTO [TAX REG. # 950897], and
JOHN DOE AND JANE DOE #1-2 (the names
John and Jane Doe being fictitious, as the true
names are presently unknown),
Defendants.

**SUMMONS
&
VERIFIED COMPLAINT**

CERTIFICATION: I hereby certify that all papers that I
have served, filed or submitted to the court in the within
action are not frivolous pursuant to Sec. 130-1.1a of the
Rules of the Chief Administrator (22NYCRR)

Ugochukwu Uzoh
Ugochukwu Uzoh

08/04/2021
Dated

Ugo Uzoh, P.C.

Attorneys for plaintiffs
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR
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